

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.2561 of 1996

Sunil Biswas alias Hauda being dead his legal
heirs 1(a) Sanjoy Biswas and others

----- Defendant-Appellant-Petitioners

=Versus=

Jatin Biswas alias Hadua being dead his legal
heirs 1(a) Manik Biswas and others

----- Plaintiff-Opposite Parties

Mr. Bivas Chandra Biswas, with

Mr. Ufal Biswas, Advocates

----- For the Petitioners

Ms. Monera Haque Mone, on behalf of

Mr. Subrata Chowdhury, Advocate

----- For the Opposite Parties

Heard on 27.11.2017, 10.12.2017 and
Judgment on: 12.12.2017

At the instance of the present-defendant-appellant-petitioner, Sunil Biswas @ Hadua being dead his legal heirs and others, this Rule has been issued calling upon the opposite parties to show cause as to why the impugned judgment and decree dated 12.02.1996 and 18.02.1996 respectively passed by the learned District Judge, Gopalganj in Title Appeal No.110 of 1995 affirming the judgment and decree dated 23.08.1995 and 30.08.1995 respectively passed by the learned Subordinate Judge, 2nd court, Gopalganj in Title Suit No.55 of 1995 should not be set aside.

The relevant facts for disposal of this Rule, inter-alia, are that the present petitioners as the plaintiffs filed the Title Suit No.101 of 1994 renumbered as Title Suit No.55 of 1995 in the court of the learned Assistant Judge, Kotalipara, Gopalganj for a decree of permanent injunction against the defendant regarding the suit land appertaining to R.S. Dag No.677, Khatian No.63 corresponding from R.S. Khatian No.52, Mouza Ramshil Pirerbari, Police Station- Kotalipara, District- Gopalganj land measuring 1.02 acres. The case in the plaint is that the above suit land originally belonged to Rupchand Hadua and Bashi Hadua in C.S. Khatian No.143, Dag No.336, land measuring 6.92 acres and in Dag No. $\frac{336}{450}$ land measuring 8.44 acres, therefore, total land measuring 15.36 acres in equal shares. Rupchand Hadua died leaving behind her two sons namely, Mohi Hadua and Bholanath Hadua. Bashi Hadua died leaving behind Parikshit Hadua who also died leaving behind Mohendra and Jogendra. The land was recorded in the name of Mohi Hadua and Bholanath Hadua and Mohendra Hadua but not in the name of Jogendra Hadua. Mohi Charan Hadua died leaving behind Surendra Hadua leaving behind three sons namely, Surendra Hadua, Jotindra Hadua, and Khogendra Hadua (present-plaintiff-opposite parties). Bholanath Hadua died leaving behind his wife Fulmala, therefore, the sons of Mohindra Hadua became the owner during the R.S. Survey the suit land was recorded as R.S. Dag No.677, land

measuring 1.01 acres in the name of Mahicharan Hadua and others in the column of possession of the suit land. The present-defendant-petitioners by misunderstanding the said record of right threaten to take away paddy from the suit land.

The present-petitioners as the defendant Nos.1-10 contested the suit by filing a written statement contending, *inter-alia*, that the defendants are the co-sharers in the suit land, therefore, the order of injunction cannot be passed. Mohi Charan Hadua and Bholanath Hadua transferred their land measuring 4.40 acres in favour of Prasanna and others by the deed dated 14.07.1940 from the C.S. Dag No.336 and the present-defendant-petitioners are the successor of Prasanna and others. The defendants were owners of land measuring total 5.92 acres by way of purchase. However, eventually, Prasanna and others became the owners of 6.10 acres and the record of right published in the name of Prasanna (the predecessor of the present-petitioners) but in R.S. operation the names of Mohi Charan Hadua and others wrongly recorded land measuring 1.02 acres in R.S. Plot No.677. The present-plaintiff-opposite parties are in possession as the co-sharers with the defendants, thus, no permanent injunction should be passed.

After hearing the parties and considering the evidence both documentary and by way of deposition of the witnesses the learned trial court decreed the suit by his judgment and decree dated 23.08.1995.

Being aggrieved the present-petitioners as the appellants preferred the Title Appeal No.110 of 1995 in the court of the learned District Judge, Gopalganj, who by his judgment and decree dated 12.02.1996 disallowed the appeal and thereby affirming the judgment and decree passed by the learned trial court. This revisional application has been filed challenging the legality of the said judgment and decree passed by the learned appellate court under Section 115(1) of the Code of Civil Procedure and this Rule has been issued thereupon.

Mr. Bivas Chandra Biswas, the learned Advocate, appearing along with Mr. Utfal Biswas for the petitioners, submits that both the courts below committed an error of law not considering the real factual aspects in this case which are that a decree of permanent injunction cannot be passed without making a legal investigation or ascertaining the right, title and interest of co-sharers of C.S. recorded tenant and also without making a formal partition of the suit land. The case is not sustainable under the provision of law, as such, the impugned judgment has been passed by committing an error of law which is liable to be set aside and the Rule should be made absolute.

He further submits that the present-petitioners as the defendants produced Exhibits-‘Ka(1)’, ‘Ka(2)’, and ‘Ka(3)’ regarding the title of the suit land as well as the relevant record of right upon the suit land but the learned courts below without considering those aspects passed the

impugned judgment on the basis of remark column in the R.S. Khatian as to the possession, as such, the impugned judgment is not sustainable in law, therefore, the Rule should be made absolute.

The Rule has been opposed by the present-opposite parties.

Ms. Monera Haque Mone, the learned Advocate, appearing on behalf of the learned Advocate Mr. Subrata Chowdhury, for the opposite parties submits that the learned trial court after considering the relevant document and evidence came to a conclusion to decree the suit restraining the present-petitioners from disturbing in their possession upon the suit land which was affirmed by the learned appellate court on the basis of the actual possession of the suit land by the present-opposite parties by passing the concurrent impugned judgment and decree but the present-petitioners obtained the present Rule on 21.08.1996 by misleading the court, thus, no interference is called for from this Court.

She further submits that the R.S. record of right contains the fact as to the possession of the suit land measuring 1.02 acres by the present-opposite parties as the successors of Mohi Charan Hadua and Ful Mala (widow of Bholanath Hadua) for a long period of time, therefore, any purchase from Mohi Charan Hadua by the present-petitioners was not valid, thus, both the courts below concurrently found in favour of the present-opposite parties, as such, the Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties, and also considering the revisional application filed under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment and decree passed by the learned appellate court and also considering the materials in the lower courts' records, it appears to me that the present-opposite parties as the plaintiffs filed the title suit for a decree of permanent injunction upon the suit land mentioned above. The plaintiffs claimed that they were threatened by the present-defendant-petitioners for taking away paddy produced by the plaintiffs in the suit land. The present-defendant-petitioners claimed that the suit land was purchased by the predecessors of the present-petitioners through the deed dated 14.07.1940 from the predecessor of the present-opposite parties. It is also contended that they entered into the suit land for taking away the paddy from the suit land as their names have been published in the current record of right.

From the above given conflicting factual aspects, this Court has to take a decision from the evidence adduced and produced by the parties as to the claim of permanent injunction by filing the present suit. The admitted position between the parties is that the suit land was owned by the C.S. recorded tenant Rupchand Hadua and Bashi Hadua as the brothers. Rupchand died leaving behind Mohi Hadua and Bholanath

Hadua. Bolanath Hadua died leaving behind Fulmala as a widow and the present-plaintiff-opposite parties are the successors of Mohi Hadua and they have been in possession of the suit land which appears from the R.S. record of right Exhibits-‘1(Ka) and 1(Kha)’ wherein the R.S. Dag No.677 has been published in the name of the present-opposite parties Exhibit ‘1(Ka)’ which clearly mentioned about the possession of Mohi Hadua and Bolanath Hadua son of Ramcharan Hadua upon the total land measuring 15.03 acres. However, dispute arose regarding the suit land measuring 1.02 acres. From Exhibit ‘1(Kha)’, it appears that in C.S. Dag No.677 the land measuring 1.02 acres and Exhibit ‘1(Ka)’ some land are admittedly in possession by the plaintiff-opposite parties. In this regard, the claim of possession by the present-defendant-petitioners as the co-owners has been considered by the courts below.

I have also carefully examined the document produced by the present-defendant-petitioners as Exhibit ‘Ka-1’, ‘Ka-2’, and ‘Ka-3’ respectively. Regarding the land more than 6.00 acres claimed to have purchased from the present-plaintiff-opposite parties in the year 1940. In this regard, the question would certainly arise if the defendant-petitioners have purchased the land from the predecessor of the present-opposite parties then how the present-petitioners accept that they were the co-owners of the present-plaintiff-opposite parties. From such factual aspects this Court can certainly come to a conclusion that the suit land

has been in possession by the present-plaintiff-opposite parties because in the courts below the defendant-petitioners failed to establish their entitlement upon the suit land measuring 1.02 acres.

The settled principle of law is that in a suit for permanent injunction the plaintiffs bear burden to prove the actual and conclusive possession upon the suit land and they have also a burden to prove the incidental title upon the suit land. In the instant case, the plaintiff-opposite parties exhibited documents as the record of right as the successors of Mohi Hadua and Fulmala Hadua by Exhibiting as Exhibits '1(Ka)' and '1(Kha)' thus, the claim of the present-petitioners possession have not been proved, therefore, the plaintiff-opposite parties are entitled to get restraining order by way of permanent injunction against the present-defendant-petitioners upon the suit land.

I am now inclined to examine the judgment and decree passed by the learned courts below. The learned trial court came to a lawful conclusion to decree the suit on the basis of the following finding:

“উপ-রাঙা আ-লাচনার পরি-প্রক্ষি-ত আমি এই সিদ্ধান্ত পৌছিয়াছি যে, বাদীগণ তাহাদের মোকাদ্দমা প্রমান করিতে সম্পূর্ণ সক্ষম হইয়াছেন। নালিশী ভূমিতে বাদীগণ তাহা-দর প্রাইমা-ফসী স্বত্ব এবং একক দখল থাকা প্রমান করিয়া-ছেন। অএ মোকাদ্দমা আকা-র ও প্রকা-র সম্পূর্ণ সচল। বিবাদীগণ তাহাদের মোকাদ্দমা প্রমানে সম্পূর্ণ ব্যর্থ হইয়া-ছেন। সুতরাং বাদীগণ তাহা-দর প্রার্থিত মতে স্থায়ী নিষেধাজ্ঞার ডিক্রি পাই-ত পা-রন। ”

The learned appellate court concurrently found in favour of the plaintiff-opposite parties on the basis of the following finding:

“বাদীরা নালিশী জমির খাজনা দেওয়া এবং বাদী-দর দেওয়া মৌখিক স্বাক্ষর দ্বারা পূর্ববর্তী-দর আমল হই-ত বাদীগণ নালিশীদাগ একক ভা-ব দখল করা প্রমানিত হইয়া-ছ। এজমালী সম্পত্তি বন্টন না হওয়া পর্যন্ত তাহারা তাহা-দর উক্ত দখল কা-য়ম রাখার অধিকারী। কা-জই বিজ্ঞ নিম্ন আদালত সঠিক ভা-বই এই মামলায় ডিক্রি প্রদান করিয়া-ছেন। বিবাদী-আপী-লন্টগণনালিশী এজমালি সম্পত্তির শরিক হইয়া থাকি-লও যে-হতু নালিশী দা-গ বাদী-দর একক ও নিরংকুশ দখল আ-ছ, সেই-হতু তাহারা উক্ত দখলরক্ষা-র্থ বিবাদী-আপিলেন্টদের বিরুদ্ধে চিরস্থায়ী নিষেধাজ্ঞা পাইতে পারে।”

In view of the above discussions and on perusal of the impugned judgment and decree passed by the learned appellate courts below concurrently finding an actual possession of the opposite parties by the documentary and oral evidence of PWs and DWs in court, I am of the opinion that the appellate court below committed no error of law by passing the impugned judgment and decree affirming the judgment and decree passed by the learned appellate court.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

The ad-interim order of stay granted at the time of issuance of the Rule by way of direction to maintain status quo in respect of possession and position of the suit land is hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts' records at once.